

VCL316634 Wells Fargo Bank, NA vs. Yang, Sarah

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-17

Motion: Motion Set Aside / Vacate Dismissal and Enter Judgment Pursuant to Section 664.6

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Re: Wells Fargo Bank, NA vs. Yang, Sarah

Case No.: VCL316634

Date: August 17, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Motion Set Aside / Vacate Dismissal and Enter Judgment Pursuant to Section 664.6

Tentative Ruling: To grant the motion and enter judgment as requested.

Facts

On March 21, 2025, the parties filed a stipulation for entry of judgment and settlement of this matter for \$7,188.68, plus costs, minus credit for any payments actually made, paid as follows:

(A) \$405.68 shall be paid on or before March 07, 2025;

(B) \$399.00 shall be paid on or before the 7th of each and every consecutive month commencing on or before April 07, 2025 through and including July 07, 2026;

(C) \$399.00 shall be paid on or before August 07, 2026.

In the event of such default, the Parties agreed that the Court was authorized to enter judgment in favor of the Plaintiff and against Defendant in the amount of \$7,188.68, plus costs, minus credit for any payments.

The stipulation expressly reserved this Court's jurisdiction following dismissal under Code of Civil Procedure section 664.6.

This matter was dismissed on March 24, 2025.

Plaintiff indicates Defendant made a single payment of \$405.68 and no other payments have been made. Plaintiff further indicates \$315 incurred in costs.

Authority and Analysis

Section 664.6 (a) states:

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

"The court's retention of jurisdiction under section 664.6 includes jurisdiction over both the parties and the case itself, that is, both personal and subject matter jurisdiction." (Lofton v. Wells Fargo Home Mortgage (2014) 230 Cal.App.4th 1050, 1061.) "Section 664.6 permits the trial court judge to enter judgment on a settlement agreement without the need for a new lawsuit." (Osuni v. Sutton (2007) 151 Cal.App.4th 1355, 1360.)

As indicated above, the Court retained jurisdiction over the parties and this matter pursuant to the filed stipulation and order dismissing this matter.

Based upon the declaration of Plaintiff's counsel and, the Court, having no opposition, grants the motion and enters judgment in the amount requested of \$7,098.00 consisting of the \$7,188.68 principal amount less the single payment of \$405.68 plus costs of \$315.00.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.